

Term 1 Revision Class

27 March 2026

Introduction to Constitutional Law 178





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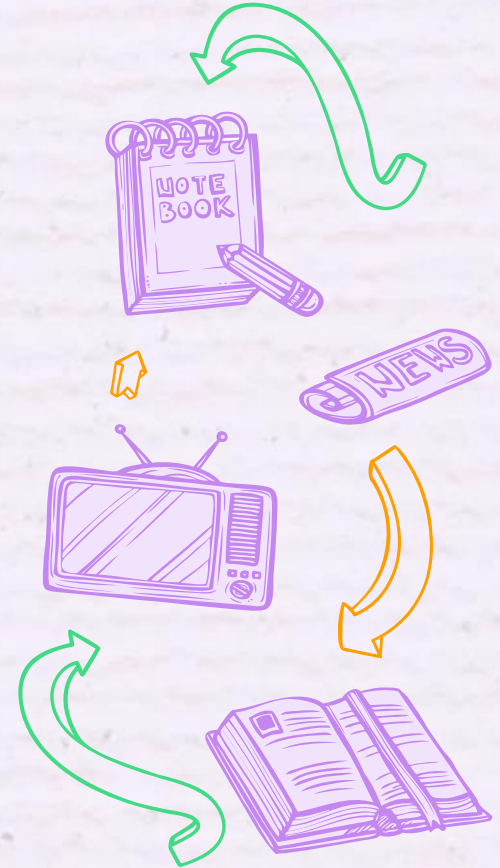
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2 Stage Transition

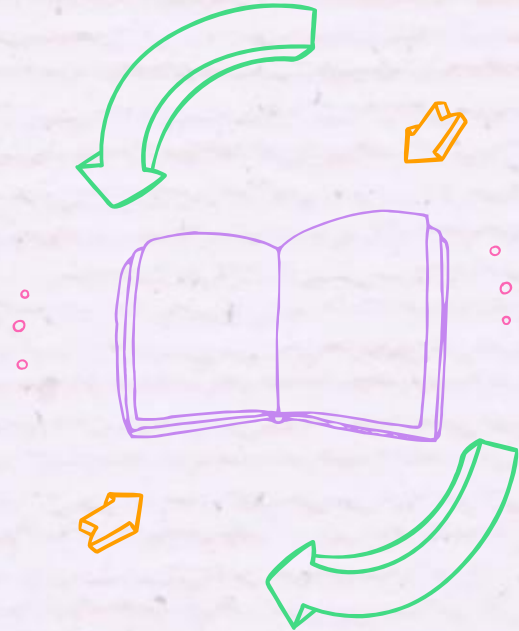




How to Approach Questions in an Assessment

1> Read the question properly

- Identify:
 - What is the topic
 - What is being asked
 - Look for instruction Words
 - Explain - describe clearly
 - Discuss - Explain and engage
 - Apply - Use the law on the facts given

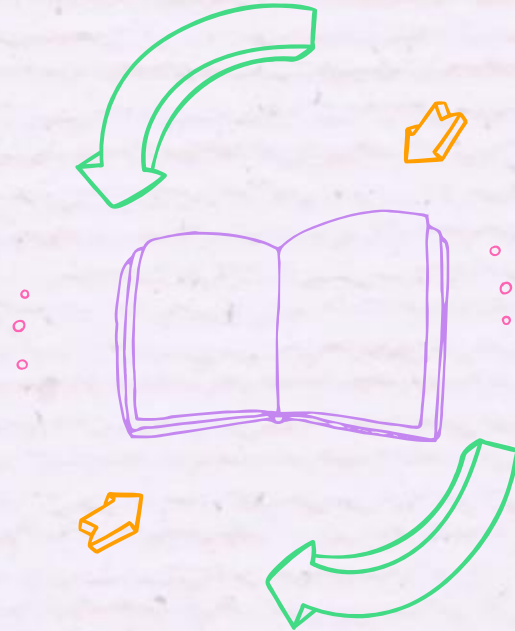




How to Approach Questions in an Assessment

2> Structure your answer

- One example: Define → , Explanation → , Case example → , Conclusion
 - Eg: Define Parliamentary Sovereignty
 - Situate it in the historical context of SA,
 - Use Case Law Harris 1, Harris 2 and Collins to show how it works
 - Conclude thoughts

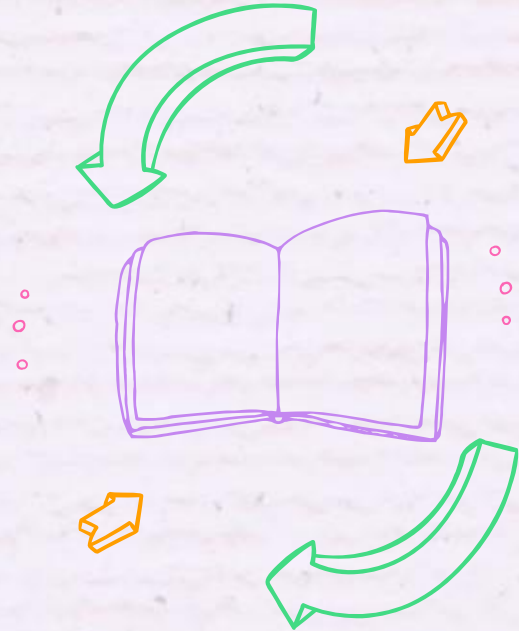




How to Approach Questions in an Assessment

3> Use Cases Properly

- Don't just name-drop
- Show:
 - What happened (brief facts)
 - What the court held
 - Why it matters to the question
 - Make sure I know what case you are referring to (don't make them up)

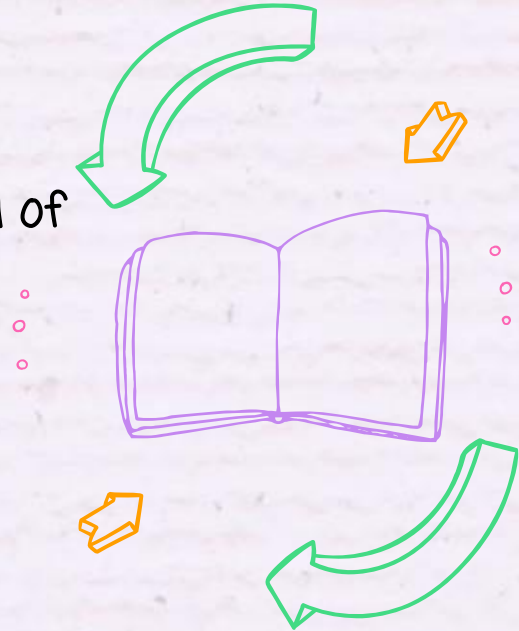




How to Approach Questions in an Assessment

4> Answer the question asked!!

- Common Mistake:
 - Writing everything you know instead of answering the question
 - I will not accept spaghetti answers

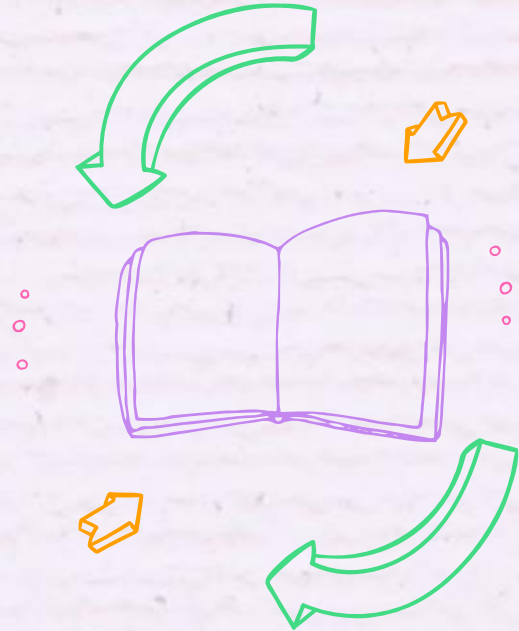




How to Approach Questions in an Assessment

5> Tips

- Marks are awarded for content AND for structure, plus application
- In Uni we don't want to just see memory recall





How to Work with Readings + Notes



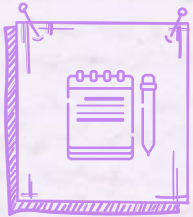
Before reading

- Look at the slides and the study guide
- Ask what this reading is connected too



During the reading

- Focus on
 - Main argument
 - Key Concepts
 - Important cases



Take active notes

- Concept, Explanation, Case / Example
- Combine with lecture notes



How to study law effectively



Don't just read – engage

Passive reading does not equal learning

0



Focus on understanding, not just memorising

Look at the relationship between ideas

EG: Parliamentary sovereignty --? No judicial review

Constitutional supremacy → Courts can strike down laws



Use the 3- step method

1. Summarise in your own words
2. Condense: into bullet point/diagram
3. Test yourself: Without your notes

How to Work with Readings + Notes



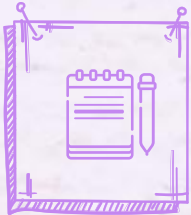
Combine

- Look at slides and the study guide
- Ask what is this reading connected too



During the reading

- Focus on
 - Main argument
 - Key Concepts
 - Important cases



Take active notes

- Concept, Explanation, Case / Example
- Combine with lecture notes

Simplify

- Turn notes into:
 - Bullets summaries
 - Tables Diagrams

Parliamentary Sovereignty & Judicial Review



Core Idea: Parliamentary Sovereignty

- Parliament was the SUPREME law maker
- Could make or unmake any law
- No Higher law
- Courts could not strike down acts of parliament based on substance

Judicial Role (Very Limited)

- Judicial review is when a court reviews a decision by parliament, focusing on whether the correct Procedure was followed
- During Apartheid, Courts could declare Acts of Parliament invalid (limited to procedure)
- Cannot review law based on law



Parliamentary Sovereignty & Judicial review (Apartheid Era)

Why this matters

- Enabled Apartheid legislation
- No effective legal check and balances on Parliament

Constitutional Crisis & Parliamentary Supremacy (Sovereignty)

- The 1910 Constitution had two entrenched provisions
 - 1) Language
 - 2) Limited voting rights of for Black South Africans
 - To amend an entrenched provision - must have 2/3rds majority in parliament
- 1951 - Parliament passed the Separate Representation of Voters Act
 - Purpose - Parliament attempts to remove Black and Coloured voters from the common roll
 - Houses sitting separately, adopted by a simple majority (thinking they did not have to follow the procedural rules)

Harris v Minister of the Interior [Harris I]

- Legal Question
 - Could parliament validly remove Black and Coloured voters from the common role WITHOUT complying with the entrenched amendment procedure?
- Decision
 - Appellant Division **said NO**
 - Even under parliamentary sovereignty, Parliament must follow the manner and form requirements laid down in the Constitution (Judicial Review)
- Key Principle
 - Parliament is sovereign, but when altering entrenched provisions, it must comply with the prescribed procedure
 - The Act was declared invalid

Harris v Minister of the Interior [Harris 1]

- Why Harris I matters
 - Recognised that procedural limits on Parliament are enforceable by courts
 - Confirmed the idea of "manner and form" limitations
 - Strengthened the role of courts in protecting the constitutional structure

Minister of the Interior v Harris (Harris II)

- The government refused to accept defeat in Harris I
- It attempted to bypass the Decision of the Appellate Division by:
 - Passed the High Court of Parliament Act 35 of 1952
 - This new body
 - Composed of Members of Parliament
 - Had the power to "review and overturn decisions" of the Appellate Division
 - Could declare court judgments invalid
 - Parliament tried to make itself the final court of appeal over constitutional matters

Minister of the Interior v Harris (Harris II)

Why is this problematic?

- Under the 1910 Constitution, there was
 - Parliamentary Sovereignty
 - But also a separation between legislative and judicial functions (SOP)
- Even under PS - parliament could not simply
 - Convert itself into a court
 - Set aside judicial decisions retroactively
- Violated core structural principles of the constitutional order

Minister of the Interior v Harris (Harris II)

- The Appellate Division declared the High Court of Parliament Act invalid

Reasoning

1. Parliament cannot confer judicial power on itself in a way inconsistent with the constitutional structure
 2. Judicial power is vested in the courts
 3. Parliament cannot overturn a court judgment by simply declaring it wrong
- This was a major assertion of judicial independence

Collins v Minister of the Interior

- Another attempt to ensure racial disenfranchisement
- Parliament
 - Expanded the senate to obtain the required majority
 - Passed the amendment to the Act through a joint sitting
- This case challenged the validity of the change to the Senate. The Argument was such that parliament manipulated its own composition to achieve the constitutional majority

Collins v Minister of the Interior

- The Appellate Division upheld the validity of the Senate Act and constitutional amendments

Reasoning:

1. Parliament had complied with the formal "manner and form" requirements
 2. The Court would not inquire into Parliament's political motives
 3. Once the proper procedure was followed, the amendment to the Senate was valid
- If the formal constitutional procedure is satisfied, the courts will not question how Parliament secured that majority

Collins v Minister of the Interior

- What this tells us
 - "courts were subservient and subordinate to Parliament. The Court could only test the manner and form in which legislation was promulgated. This means that only formal requirements could be tested. The content or Substance of legislation could not be tested. The Court could not use the fact that certain guaranteed rights were violated as a ground for its decision (Kleyn et al)

Summary

- **Harris I** = Parliament must follow the rules of the Constitution
- **Harris II** - High Court of Parliament - Parliament cannot turn itself into a court ... (SOP considerations)
- **Collins** = If Parliament follows the rules, courts cannot question what it does

Parliamentary Sovereignty versus Constitutional Supremacy

- Parliament has final say
 - No substantive review
- The Constitution is the final say!
 - Substantive review (Judiciable BOR)

Two stage Transition Solution

- **CODESA I**
- **CODESA II**
- **MPNF**

→ IC

→ First elections

→ Constitutional Assembly

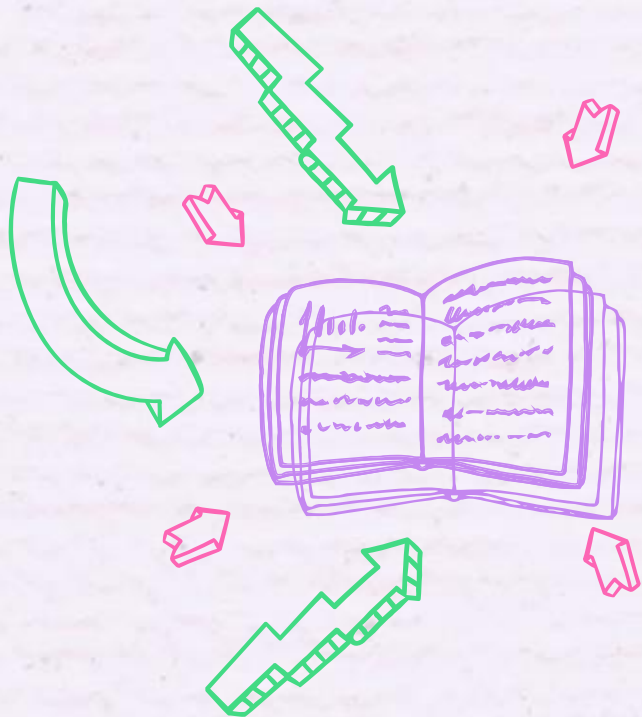
→ Certification

→ Final Text = Consitution of the Republic of South Africa

Two stage Transition Solution

The negotiators (CODESA) devised a **two-stage transition solution**:

- **Stage 1:** Unelected negotiating parties draft and adopt the IC; an interim government and the IC would govern the country after the first election
- **Stage 2:** A democratically **elected Constitutional Assembly** drafts the Final Constitution after the election.



Whoa!

HAVE. A FANTASTIC VACATION